

24STLC07577 24STLC07577

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Case Number: 24STLC07577 Hearing Date: September 23, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Loan Asset Issuer LLC Series 2021 M 2's Motion for Judgment on the Pleadings is denied.

Analysis:

On October 18, 2024,

Plaintiff Loan Asset Issuer LLC Series 2021 M 2 ("Plaintiff") filed this action for breach of loan agreement against Defendant Verta Gil ("Defendant").

Defendant filed an Answer to the Complaint on November 27, 2024. On November 25, 2025, the Court granted Plaintiff's Motion to Deem Requests for Admission Admitted and Request for Monetary Sanctions against Defendant. (Minute Order, 11/25/25.)

Plaintiff filed and served the instant Motion for Judgment on the Pleadings against Defendant on July 1, 2026. No opposition has been filed to date.

Discussion

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322, citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.) Where the moving party is the plaintiff, judgment on the pleadings may be granted on the basis "that the complaint

states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (Code Civ.

Proc., § 438, subd. (c)(1)(A).) Matters which are subject to mandatory judicial notice may be treated as part of the complaint and may be considered without notice to the parties. Matters which are subject to permissive judicial notice must be specified in the notice of motion, the supporting points and authorities, or as the court otherwise permits. (Id.) The motion may not be supported by extrinsic evidence. (Barker v. Hull (1987) 191 Cal.App.3d 221, 236.)

While a statutory motion for judgment on the pleadings brought pursuant to Code of Civil Procedure section 438, et seq. must be accompanied by a meet and confer declaration, there is no such requirement for a motion for judgment on the pleadings brought pursuant to the common law. (See Code Civ. Proc., § 439 [moving party must file declaration demonstrating an attempt to meet and confer in person or by telephone, at least five days before the date a motion for judgment on the pleadings is filed].) The instant Motion is supported by a meet and confer declaration. (Motion, D-Anna Decl., ¶¶3-6 and Exhibit 3.)

The instant Motion is accompanied by a request for judicial notice of (1) Plaintiff's Request for Admissions propounded to Defendant; and (2) the Court Order Deeming Plaintiff's Request for Admissions to Defendant. (RJN, Exhs. 3-4.) The Court takes judicial notice of the admissions pursuant to Cal. Evidence Code section 452, subdivision (d). (Cal. Evid. Code, § 452, subd. (d); see also Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999; Evans v. California Trailer Court, Inc. (1994) 28 Cal.App.4th 540, 549 [holding that the court may take judicial notice of matters that cannot be reasonably controverted, including "admissions and concessions."].)

"[I]n order for judicial notice to support a motion for judgment on the pleadings by negating an express allegation of the pleading, the notice must be of something that cannot reasonably be controverted... The same is true of evidentiary admissions or concessions." (Columbia Casualty Co. v. Northwestern Nat. Ins. Co. (1991) 231 Cal.App.3d 457, 468.)

This condition is not met here. First, the admissions are internally contradictory. As alleged in the Complaint, Plaintiff purchased the loan; Plaintiff was not the original party to the Promissory Note. (See Compl., ¶10.) Yet, the deemed admission that Plaintiff asks

this Court to credit states that Defendant entered into the Loan Agreement with Plaintiff. (RJN, Exh. 3, RFA No.

4.) That is clearly not accurate. The Loan Agreement and Promissory Note identifies "Cross River Bank" as the initial lender. (Compl., Exh. B.) In a further issue, the deemed admissions, as written, leave ambiguity as to the amount remaining due on the loan. RFA No. 12, asks Defendant to admit that "the principal amount due of \$10,058.45 as set forth in the Complaint filed in this matter is correct", while RFA No. 9 asks Defendant to admit, without specifying any date or amount, that "All payments YOU have submitted have been credited ot[sic] the subject loan." (RJN, Exh.

3.) The RFAs were deemed admitted months after the Complaint was filed. Taken together, these two deemed admissions do not clearly admit that \$10,058.45 is due and owing now, such that the amount due could not "reasonably be controverted", because Defendant may have made payments after the Complaint was filed. (Columbia Casualty Co., 231 Cal.App.3d at 468.)

Plaintiff's proffered omnibus admission that "Every statement or allegation contained in Plaintiffs Complaint is true and correct" does not cure these issues for at least two reasons. (See RJN, Exh. 3, RFA 13.) First, even admitting the allegations in the Complaint wholesale does not correct these issues. As indicated, the Complaint identifies Plaintiff as a purchaser of the loan, not a party to the Borrower Agreement or Promissory Note, creating a conflict with the deemed admissions. (Compl., ¶10.) And, the Complaint's allegation that \$10,058.45 was due at the time the Complaint was filed does not address whether any subsequent payments have been made and credited to the account. Second, the omnibus admission is not a proper admission or matter for judicial notice in any event. (See Cal. Civ. Proc. Code § 2033.010 (admissions must pertain to "the truth of specified matters of fact, opinion relating to fact, or application of law to fact")(emphasis added); Cal. Evid. Code, §452(h) (notice may be taken of "facts and propositions not reasonably subject to dispute").

Thus, Plaintiff is not entitled to Judgment on the Pleadings based on the deemed admissions.

This result is consistent with the appropriate use of deemed admissions more generally. "[A]fter a matter is deemed admitted, the scope and effect of the admission must be determined by the trial court." (Fredericks v. Filbert Co. (1987) 189 Cal. App. 3d 272, 278) (citation omitted.) The Court's discretion encompasses the determination whether the opportunity to present additional evidence may provide relevant context as to the meaning and scope of the deemed

admissions. (See Columbia Casualty Co. v. Northwestern Nat. Ins. Co., 231 Cal.App.3d at 468.) The concern is grounded in due process: "The notice of motion for judgment on the pleadings is thus notice to be prepared to argue legal sufficiency of allegations; it is not notice to come forward with factual support for what is alleged. This process recognizes that there may in fact be evidence which challenges the truth of the allegations of the pleading under attack but defers the challenge until a motion for summary judgment or a trial." (Id. at 469.) Similarly in Fredericks, the court observed, "[t]he court must have discretion to admit evidence to elucidate and explain an admission, because the admission of a fact does not always reflect the party's reasonable understanding of that fact." (189 Cal. App. 3d at 278.) Use of deemed admissions in a motion for judgment on the pleadings – in contrast to at trial or summary judgment – deprives a defendant of the opportunity to attempt to proffer evidence to elucidate and explain the meaning of requests for admission. As indicated above, that opportunity is appropriately afforded in this case given the ambiguities in the deemed admissions.

Conclusion

Plaintiff Loan Asset Issuer LLC Series 2021 M 2's Motion for Judgment on the Pleadings is denied.

Moving party to give notice.